

JONATHAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased: 6/ /10

-----X
COURTNEY GRANT,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial.

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. ANDREW ULICH, P.O. MARY
ROSARIO and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
arresting or offending officers,
Defendants.

The basis of venue is:
CPLR 504 (3)

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
June 24, 2010

[Signature]
By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
COURTNEY GRANT

To:
CITY OF NEW YORK, NYPD
CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept
New York, New York 10007
P.O. s ANDREW ULICH, Shield #01681 & MARY ROSAIO, Shield #31099
41st Precinct, 1035 Longwood Ave, Bronx NY 10459

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

RECEIVED
10 JUN 24 AM 11:39
BRONX COUNTY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
COURTNEY GRANT,

Plaintiff,

Index No.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O ANDREW ULICH and P.O. MARY
ROSARIO and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
arresting or offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION UNDER 24 U.S.C §1983 ON BEHALF
OF THE PLAINTIFF COURTNEY GRANT**

1. At the time of the commencement of this action, Plaintiff COURTNEY GRANT

was and still is resident of the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned, defendant CITY OF NEW YORK, was, and still is Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the City and State of New York.
4. That defendant, CITY OF NEW YORK maintains a police department.
5. That defendant, CITY OF NEW YORK, and the employer of the defendants, P.O. ANDREW ULICH, P.O. MARY ROSARIO, and Officers as of yet unnamed, is being sued as a person under 42 U.S.C. § 1983 because of its policies and procedures of permitting, condoning and allowing of such misconduct as that complained of herein.
6. That this action is being commenced within the time allowed by law.
7. That on or about May 28, 2008 at 1035 Longwood Ave, Bronx New York, the plaintiff COURTNEY GRANT was improperly arrested and confined without proper authority or justification, having no reason in law or in fact to arrest COURTNEY GRANT, stemming from false arrests that occurred at 921 East 163rd St., Bronx NY, on the following dates and times: August 5, 2007 at approximately 3:55 am; on October 13, 2007 at approximately 12:30 am, and on October 27, 2007 at approximately 2:30 am., whereat, on each occasion, plaintiff COURTNEY GRANT was improperly arrested and confined without proper authority or justification, having no reason in law or in fact

8. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

9. That the defendants did intentionally confine plaintiff without justification and without his consent, and plaintiff was aware of his unjustified confinement.

10. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O ANDREW ULICH , P.O. MARY ROSARIO and OFFICER[S] JOHN AND/OR JAMES DOE, were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

11. That the plaintiff COURTNEY GRANT, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O ANDREW ULICH, P.O. MARY ROSARIO and OFFICER [S] JOHN AND/OR JAMES DOE.

12. That on and about May 28, 2008 at approximately 1 P.M., and October 27, 2207 at approximately 2:30 A.M., P.O ANDREW ULICH was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

13. That on and about May 28, 2008 at approximately 1 P.M., and October 27, 2007 at approximately 2:30 A.M., P.O ANDREW ULICH was working and acting within the scope of his employment as a police officer, and under the color of law.

14. That on and about August 5, 2007 at approximately 3:55 A.M., and October 13, 2007 at approximately 12:30 A.M., P.O MARY ROSARIO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

15. That on and about August 5, 2007 at approximately 3:55 A.M., and October 13, 2007 at approximately 12:30 A.M. P.O MARY ROSARIO was working and acting within the scope of her employment as a Police Officer, and under the color of law

16. That on and about May 28, 2008 at approximately 1 P.M. and October 27, 2007 approximately 2:30 A.M and August 5, 2007 at approximately 3:55 A.M., and October 13, 2007 at approximately 12:30 A.M, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

17. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact and without reasonable, probable or just cause and initiated criminal proceedings against plaintiff.

18. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

19. That the defendants P.O ANDREW ULICH and P.O. MARY ROSARIO and OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unlawful seizure of his person and property.

20. That defendants, their agents, servants and/or employees continued to incarcerate and prosecute plaintiff and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

21. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and with excessive, unreasonable and unnecessary force, thereby causing fright, shock, emotional distress and physical consequences.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority.

23. That the abuse to which plaintiff was subjected was consistent with an institutionalized practice of the NEW YORK CITY POLICE DEPARTMENT which was known to and approved of by the municipality, which practice proximately caused injury to plaintiff by P.O ANDREW ULICH and P.O. MARY ROSARIO who was aware of CITY OF NEW YORK's tolerance of police misconduct, of falsely arresting innocent persons, especially persons of racial minorities, to extra-legally physically and otherwise abuse plaintiff; the CITY OF NEW YORK communicated its tolerance of abusive misconduct to P.O ANDREW ULICH and P.O. MARY ROSARIO, *inter alia*, by failing at any time, to take any effective action to prevent defendant P.O ANDREW ULICH and P.O. MARY ROSARIO from continuing to engage in such misconduct as that complained of herein, and by letting it be known to police personnel, in general, including defendant, P.O ANDREW ULICH and P.O. MARY ROSARIO, that complaints by citizens of police abuse would be taken lightly.

24. That, upon information and belief, more specifically, defendant, CITY OF NEW YORK, authorized, tolerated as institutionalized practices and approved of the misconduct hereinbefore detailed by:

a. Failing to properly instruct, discipline, restrict, control and supervise employees, including defendants, P.O ANDREW ULICH and P.O. MARY ROSARIO, known to be irresponsible in their dealings with citizens of the community;

b. Failing to take adequate precautions the hiring, assignment and retention of police personnel, including specifically defendants, P.O ANDREW ULICH and P.O. MARY ROSARIO;

c. Failing to forward to the Bronx County District Attorney's office, evidence of criminal acts committed by police personnel;

d. Failing to encourage or urge the Bronx County District Attorney to act upon evidence of criminal acts involving the abuse of citizens and other residents by police personnel;

e. Failing to establish and/or secure the functioning of a *bona fide* and meaningful departmental system for dealing with complaints of police misconduct, but instead responding to such complaints by confronting citizens and other residents with bureaucratic power and official denials, calculated to mislead the public and cause

victims of police misconduct to despair: said conduct is indicative of CITY OF NEW YORK's approval of police misconduct under Title 42 U.S.C. Section 1983 and also constitutes gross negligence;

f. Communicating to such police personnel as P.O ANDREW ULICH and P.O. MARY ROSARIO, approval of such an official misconduct as that herein by such means as letting it be known that citizens', and other residents', complaints of police misconduct would be treated lightly and establishing a procedure under which police personnel whose misconduct resulted in the filing of formal complaints were, to a large extent, insulated from disciplinary action for the improper performance of duty referred to therein by the use of such dishonest techniques as conducting counterfeit investigations calculated to exonerate police personnel of any findings of wrongdoing and then highlighting the outcome of whitewashes in responding to actions brought by citizens and other residents;

g. Establishing and continuing in effect a counterfeit internal 'investigation' apparatus calculated to assure, and having the effect of assuring, CITY OF NEW YORK police personnel that abusive treatment of citizens and other residents will not be regarded as a serious matter, thereby proximately causing unlawful use of police

authority against citizens and other residents, including the abusive conduct complained of herein;

h. Allowing, condoning and/or permitting the establishment and perpetuation of a policy, custom and/or practice of deliberate indifference to the rights of residents, including the plaintiff herein;

i. By repeatedly arresting plaintiff without justification or probable cause and by prosecuting plaintiff maliciously and by providing false information.

25. That, as a consequence of the abuse of authority detailed above, including CITY OF NEW YORK's condoning of official misconduct and fundamentally flawed procedures, plaintiff sustained the damages hereinbefore alleged.

26. That the defendants, their agents, servants and/or employees initiated and prosecuted a criminal action against the Plaintiff without any basis in law or fact.

27. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the Plaintiff due to racism and prejudice and malice and without any basis in law or fact.

28. That plaintiff was tried and found not guilty of all charges on April 3, 2009.

29. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

30. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. § 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, Fourth Amendment right to be free from unlawful seizures of his person, Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. §1983, et seq.

31. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff COURTNEY GRANT was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from

attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

32. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

**AS AND FOR A SECOND CAUSE OF ACTION UNDER 24 U.S.C §1983 ON
BEHALF OF THE PLAINTIFF COURTNEY GRANT**

33. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 32 as though more fully set forth herein.

34. That on or about May 15, 2009, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of

payment thereof has been neglected or refused by the defendant, that no General Municipal Law §50-h hearing was requested by respondent/defendant, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

35. That this cause of action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

36. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the Plaintiff without any basis in law or fact.

37. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the Plaintiff due to racism and prejudice and without any basis in law or fact.

38. That the defendants P.O ANDREW ULICH and P.O. MARY ROSARIO, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unlawful seizure of his person and property.

39. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

40. That plaintiff was tried and found not guilty of all charges on April 3, 2009.

41. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

42. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

**AS AND FOR A THIRD CAUSE OF ACTION UNDER 24 U.S.C §1983 ON BEHALF
OF THE PLAINTIFF COURTNEY GRANT**

43. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 42 as though more fully set forth herein.

44. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

45. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the arrest of individuals, in the use of force and in the utilization of invasive search procedures carried out in public and within the view of the general public.

46. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff COURTNEY GRANT was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

47. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second and Third Causes of Action in sums which exceed the jurisdiction of all lower Courts, together with attorney's fees provided under statute at the conclusion of the

action and legal services provided to plaintiff and punitive damages, with the costs and disbursements of this action.

Dated: Bronx, New York
June 24, 2010


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
COURTNEY GRANT

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK, NYPD
CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept
New York, New York 10007

P.O. s ANDREW ULICH, Shield #01681 & MARY ROSAIO, Shield #31099
41st Precinct, 1035 Longwood Ave, Bronx NY 10459

PLAINTIFF'S VERIFICATION

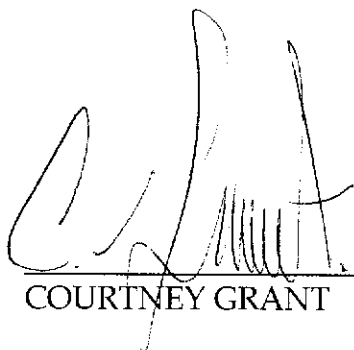
COURTNEY GRANT, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.



COURTNEY GRANT

INDEX NO.:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

COURTNEY GRANT,
Plaintiff,
-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O ANDREW ULICH and P.O. MARY
ROSARIO and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
arresting or offending officers
Defendants.

Summons and Verified Complaint

JONATHAN L. GLEIT, ESQ.

Attorney for the Plaintiff

COURTNEY GRANT

888 Grand Concourse
Suite 1-O
Bronx, New York 10451
(718) 742-0200
